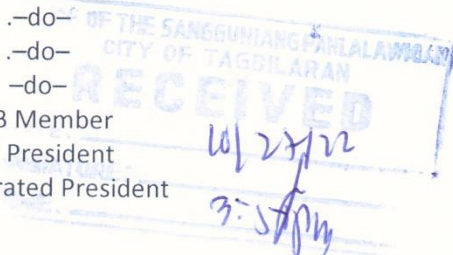




OFFICE OF THE SANGGUNIANG BAYAN

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE SANGGUNIANG BAYAN OF PANGLAO, BOHOL HELD ON OCTOBER 24, 2022 AT THE SB SESSION HALL, PANGLAO, BOHOL

PRESENT: Hon. Noel E. Hormachuelos . . . Vice Mayor/Presiding Officer
Hon. Daisy M. Delambaca SB Member
Hon. Benedict C. Alcala. -do-
Hon. Felix M. Fudolig -do-
Hon. Fielle Anthony S. Dumaluan -do-
Hon. Eduard G. Mejos -do-
Hon. Dennis B. Hora -do-
Hon. Jose C. Rodriguez IV. -do-
Hon. Leonila P. Montero. SB Member
Hon. Jose L. Arbitrario ABC President
Hon. Jonah L. Sumaylo SK Federated President



MUNICIPAL ORDINANCE NO. 04
Series of 2022

AN ORDINANCE AMENDING SECTIONS NO. 4 (1), 9, 13, 20 AND 25 OF THE MUNICIPAL ORDINANCE NO. 3 SERIES OF 2002, OTHERWISE KNOWN AS, AN ORDINANCE ESTABLISHING AND CREATING THE PANGLAO TRANSPORTATION FRANCHISING AND REGULATORY BOARD DEFINING ITS COMPOSITION, POWERS, DUTIES, FUNCTIONS, RESPONSIBILITIES, OPERATIONS, PENALTIES AND APPROPRIATING FUNDS THEREFOR

(Sponsored by: Hon. Felix M. Fudolig)

Be it ordained by the Sangguniang Bayan of Panglao, Bohol in session duly assembled –

Section 1. Amendment to Section 4 of Municipal Ordinance No. 03, Series of 2002. Section 4 Municipal Ordinance No. 03, Series of 2002 is hereby amended:

Section 4. There is hereby created a Panglao Tricycle Franchising and Regulatory Board that shall be composed of and shall perform the following powers, duties, and functions;

1. Composition

- a. Municipal Mayor- Chairman
- b. Chairman of Transportation Committee (SB)- Vice Chairman
- c. Representative from Municipal Treasurer's Office (MTO)
- d. President of the Tricycle Association
- e. ABC President
- f. Panglao Transportation and Traffic Management Office-Head

Section 2. Amendment to Section 9 of Municipal Ordinance No. 03, Series of 2002. Section 9 Municipal Ordinance No. 03, Series of 2002 is hereby amended:

Section 9. Non-Transferability of Franchise- The franchise issued to a franchisee is a personal privilege, hence, it is non-transferable except to the immediate direct heirs.

For expired franchisees not renewed within 20 days from the start of the calendar year, the Panglao Transport Franchising and Regulatory Board shall notify their respective operators and give them additional 10 days for the renewal of the same; otherwise, their respective franchises shall be deemed cancelled by the same board.



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Section 3. Amendment to Section 13 of Municipal Ordinance No. 03, Series of 2002. Section 13 of Municipal Ordinance No. 03, Series of 2002 is hereby amended:

Section 13. Grounds for Revocation or Cancellation of Franchise. The following are the grounds for the revocation or cancellation of a franchise of a transport vehicle operating within the Municipality of Panglao:

- Non-renewal of the franchise;
- Non-roadworthiness of the unit as the result of inspection and evaluation conducted by the team composed of Panglao Traffic Management Office (PTMO), Philippine National Police (PNP) and Panglao Tricycle Drivers and Operators Association (PATDOA);
- If the driver is the owner or operator, three (3) consecutive violations of traffic laws such as, but not limited to, over-speeding, driving under influence of liquor and reckless driving as evidenced by the citation ticket or TOP issued to the driver;
- Three (3) instances where the unit was driven by a non-holder of a duly issued Land Transportation Office (LTO) professional driver's license;
- Making false statements or information in the application.

Section 4. Amendment to Section 20 of Municipal Ordinance No.3 Series of 2002 which is further amended by Section 20 of Municipal Ordinance No.13, Series of 2014 is hereby amended:

Section 20. The minimum fare for first 1 kilometer is Php 20.00 and every succeeding kilometer is Php 5.00 per passenger;

For reference, the tariff rates of tricycle within the Municipality of Panglao based on the above-stated rate are as follows;

ROUTE	KILOMETER DISTANCE (APPROXIMATELY)	REGULAR FARE (PHP) PER PERSON	ELDERLY/ DISABLED & STUDENT FARE
First 1 kilometer		Php 20.00	
Every succeeding kilometer		Php 5.00	
FROM PANGLAO PUBLIC MARKET TO or VICE VERSA			
CASCAJO KASIDLAK	1.2 KM	Php 25.00	Php 20.00
CRISTAL E COLLEGE	2.6 KM	Php 30.00	Php. 25.00
KABERIK	3.2 KM	Php 35.00	Php 30.00
ACASIA LIBAONG ESKINA	4.6 KM	Php 40.00	Php 30.00
LOURDES NATIONAL HIGHSCHOOL	5.6 KM	Php 45.00	Php 35.00
LOOC	2.1 KM	Php 30.00	Php 25.00
BIL ISAN ELEM. SCHOOL	2.5 KM	Php 30.00	Php 25.00
BIL ISAN SARAHINA	2.8 KM	Php 30.00	Php 25.00
TANGNAN CROSSING	5.2 KM	Php 45.00	Php 35.00
TANGNAN ELEMENTARY SCHOOL	5.5 KM	Php 45.00	Php 35.00
TANGNAN TOWNLINE	7.2 KM	Php 55.00	Php 45.00
LAG-ITAN	2.1 KM	Php 30.00	Php 25.00
BEGONIA/BRAVEDIVER RESORT	2.2 KM	Php 30.00	Php 25.00
BELLEVUE BEACH RESORT	2.5 KM	Php 30.00	Php 25.00
MODALA BEACH RESORT	2.9 KM	Php 30.00	Php 25.00
DANAO - MAOG	1.5 KM	Php 25.00	Php 20.00
DANAO - BALILI	2.6 KM	Php 30.00	Php 25.00
DANAO - DAORONG	3.6 KM	Php 35.00	Php 30.00
TAWALA RONA'S CORNER	5.0 KM	Php 40.00	Php 30.00
TAWALA ELEMENTARY SCHOOL	6.6 KM	Php 50.00	Php 40.00
BOHO PANGLAO INT'L AIRPORT	6.3 KM	Php 50.00	Php 40.00
TAWALA - SUNRISE	7.9 KM	Php 55.00	Php 45.00



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BOLOD ELEMENTARY SCHOOL	8.5 KM	Php 60.00	Php 50.00
DUMALUAN BEACH RESORT	8.8 KM	Php 60.00	Php 50.00
LIBAONG ELEMENTARY SCHOOL	7.1 KM	Php 55.00	Php 45.00
AMARELA	8.9 KM	Php 65.00	Php 50.00
FROM BOHOL PANGLAO INTERNATIONAL AIRPORT TO or VICE VERSA			
CASCAJO KASIDLAK	5.3 KM	Php 45.00	Php 35.00
LOOC	6.5 KM	Php 50.00	Php 40.00
BIL ISAN	6.7 KM	Php 50.00	Php 40.00
TANGNAN ELEMENTARY SCHOOL	6.3 KM	Php 50.00	Php 40.00
TANGNAN TOWNLINE	8.6 KM	Php 60.00	Php 50.00
LOURDES	4.9 KM	Php 40.00	Php 30.00
ACASIA LIBAONG ESKINA	5.7 KM	Php 45.00	Php 35.00
LIBAONG ELEMENTARY SCHOOL	6.4 KM	Php 50.00	Php 40.00
AMARELA	6.2 KM	Php 50.00	Php 40.00
DUMALUAN BEACH RESORT	5.0 KM	Php 40.00	Php 30.00
SOUTHPALM BEACH RESORT	4.9 KM	Php 40.00	Php 30.00
BOLOD ELEMENTARY SCHOOL	2.1 KM	Php 30.00	Php 25.00
TAWALA - SUNRISE	3.6 KM	Php 35.00	Php 30.00
TAWALA ELEM. SCHOOL	1.7 KM	Php 25.00	Php 20.00
TAWALA RONA'S CORNER	3.0 KM	Php 30.00	Php 25.00
DANAO - DAORONG	4.3 KM	Php 40.00	Php 30.00
DANAO - MAOG	4.9 KM	Php 40.00	Php 30.00
DANAO - BALILI	5.2 KM	Php 45.00	Php 35.00
PANGLAO PUBLIC MARKET	6.7 KM	Php 50.00	Php 40.00
BRAVEDIVE/ BEGONIA RESORT	8.2 KM	Php 60.00	Php 50.00
BELLEVUE BEACH RESORT	8.7 KM	Php 60.00	Php 50.00
MODALA BEACH RESORT	9.1 KM	Php 65.00	Php 50.00
FROM ALONA RONA'S CORNER TO or VICE VERSA			
CASCAJO KASIDLAK	7.3 KM	Php 55.00	Php 45.00
LOOC	6.4 KM	Php 50.00	Php 40.00
BIL ISAN	7.6 KM	Php 55.00	Php 45.00
TANGNAN CROSSING	7.9 KM	Php 55.00	Php 45.00
TANGNAN ELEMENTARY SCHOOL	8.4 KM	Php 60.00	Php 50.00
TANGNAN TOWNLINE	9.4 KM	Php 65.00	Php 50.00
LOURDES	7.3 KM	Php 55.00	Php 45.00
ACASIA LIBAONG ESKINA	6.5 KM	Php 50.00	Php 40.00
LIBAONG ELEMENTARY SCHOOL	6.8 KM	Php 50.00	Php 40.00
AMARELA	6.0 KM	Php 45.00	Php 35.00
DUMALUAN BEACH RESORT	6.3 KM	Php 50.00	Php 40.00
SOUTHPALM BEACH RESORT	4.7 KM	Php 40.00	Php 30.00
BOLOD ELEMENTARY SCHOOL	2.9 KM	Php 30.00	Php 25.00
TAWALA - SUNRISE	2.8 KM	Php 30.00	Php 25.00
TAWALA ELEMENTARY SCHOOL	1.5 KM	Php 25.00	Php 20.00
DANAO - DAORONG	2.6 KM	Php 30.00	Php 25.00
DANAO - BALILI	3.1 KM	Php 35.00	Php 30.00
PANGLAO PUBLIC MARKET	5.0 KM	Php 40.00	Php 30.00
BRAVEDIVE / BEGONIA RESORT	6.1 KM	Php 50.00	Php 40.00
BELLEVUE BEACH RESORT	6.7 KM	Php 50.00	Php 40.00
MODALA BEACH RESORT	7.1 KM	Php 55.00	Php 45.00

Section 5. Amendment to Section 25 of Municipal Ordinance No. 03, Series of 2002. Section 25 of Municipal Ordinance No. 03, Series of 2002 is hereby amended:



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Section 25. Traffic violations committed by franchised tricycle drivers with their corresponding penalties are the following:

NO.	TRAFFIC VIOLATIONS	PENALTIES
1	Reckless driving	Php 2,500.00
2	Over- speeding	Php 2,500.00
3	Overloading of Passenger	Php 2,500.00
4	Driving under the influence of liquor and Prohibited Drugs	Php 2,500.00
5	Parking in non- designated LGU parking areas, except if the parking will not last more than 5 minutes and the engine is still running with its hazard lights on	Php 500.00
6	Refusal to convey passenger	Php 1,000
7	Arrogant drivers	Php 2,500
8	Trip Cutting	Php 1,500.00
9	Non – courteous behavior by not allowing the pedestrians to cross the roads	Php 1,000.00
10	Not putting fare matrix inside the tricycle unit	Php 1,000.00
11	Not putting the personal identification card inside the tricycle unit;	Php 1,000.00
12	Not putting of tricycle body number issued by the PTMO on the tricycle unit;	Php 1,500.00
13	Not putting the word “ PANGLAO” in the tricycle unit	Php 1,000.00
14	Operating outside line	Php 2,500.00
15	Non wearing of prescribed drivers uniform with their assigned number	Php 500.00
16	Throwing of garbage outside their vehicle either by driver or passenger while moving or parked	Php 2,000.00
17	And all other traffic violations covered under RA 4136 otherwise known as the Land Transportation and Traffic Code of the Philippines	Php 1,000.00

Section 6. Separability Clause. That all provisions of the aforementioned municipal ordinance not affected by this amending ordinance shall remain in effect unless suspended or repealed by same August Body of the Sangguniang Bayan of Panglao, Bohol.

Section 7. Repealing Clause. All ordinance, orders, rules and regulation or parts thereof which are inconsistent with any provision of this Ordinance are hereby deemed repealed, amended or modified accordingly.

Section 8. Effectivity. This ordinance shall take effect upon approval and publication.

UNANIMOUSLY APPROVED: This 24th day of October, 2022 at Panglao, Bohol.

I hereby certify to the correctness of the above-quoted ordinance.

ATTESTED:


ANALYN ALCALA-APDUHAN
SB Secretary

APPROVED:


HON. NOELE E. HORMACHUELOS
Vice Mayor/Presiding Officer


HON. EDGARDO F. ARDAY
Municipal Mayor

Date Signed: 10-26-22